

State of Gujarat v. Sandip Omprakash Gupta (2022)

Special Criminal Acts (GUJCTOC) & Constitutional Safeguards

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Citation & Forum: 2022 SCC OnLine Guj 2315 | Gujarat High Court

Core Legal Principle: Core Ratio: Stringent provisions of organized crime acts require strict compliance with statutory preconditions.

Prior sanction by competent authority is not an empty formality but a vital citizen safeguard.

Key Precedent Note: Critical benchmark for criminal defense jurisprudence in Gujarat.